

VIRTUE

PRINCIPLE

CHOICE

ETHICS

FAIRNESS

JUSTICE

FREEDOM

MODULE 1 WHAT IS ETHICS?

Introduction

This module aims to analyze ethics in different perspectives which includes its definition, nature, and its importance to an individual and society. It presents the difference between moral standards and non-moral standards, tackles as well as the characteristics of moral standards that can easily identify their distinctions with each other and how moral standards are formed.

Learning Objectives

After studying this module, you should be able to:

1. Discuss the definition, nature, and importance of ethics to an individual and society.
2. Explain the difference between moral standards and non-moral standards.
3. Enumerate the characteristics of moral standards to easily identify its dissimilarities to non-moral standards.
4. Explore how moral standards are formed.

Learning Content

1.0 WHAT IS ETHICS?

Ethics or moral philosophy can be provisionally described as the empirical study of moral decisions. It is a discipline concerned with what is morally good and evil, right and wrong. The word often refers to any scheme or philosophy of universal ideals or beliefs.

The concept is derived from the Greek word “*ethos*” which may mean tradition, habit, character, or attitude. This is not only about the nature of specific courses of action, but it is also about the goodness of people and what it means to lead a decent life. (Leandro, Jr & Gubia-on, 2018)

Moreover, ethics is a systematic analysis of the nature of human actions. It is concerned about the correctness and wrongness of the act. An act is deemed to be right or wrong, based on the intent, circumstances, or character of the act itself. As a philosophy, is a very important discipline because it involves critical thinking, as it explores and describes fundamental beliefs, standards, ideals, and traditions. This is thus a higher level of human discipline.

As a branch of philosophy, ethics is divided into normative and meta-ethics. The purpose of normative ethics, which concerns human behavior in general, is to address our questions about the essence of human behavior. Normative ethics, by definition, examine whether or not a particular act should or should not be carried out.

There are two fields of normative ethics: moral philosophy and applied ethics or practical ethics. Moral philosophy deals with moral ideas such as what human beings "must do or how human beings should be." This also deals with our moral obligation, the meaning of the act, or the purpose of the act. On the other hand, applied ethics is a philosophy that discusses strong and basic moral issues linked to abortion.

Meta-ethics is a discipline that relies on meaning. It is a science that is seeking to address non-moral questions about morality. Those refer to questions about the nature of moral statements, the purpose and significance of moral facts, and concerns about the interpretation and justification of moral statements.

In contrast to meta-ethics, normative ethics seeks to examine how human beings respond to a moral question. This also aims to clarify and prescribe common expectations on what human beings should do to interact with others in society and in a meaningful way. (Maboloc, 2012)

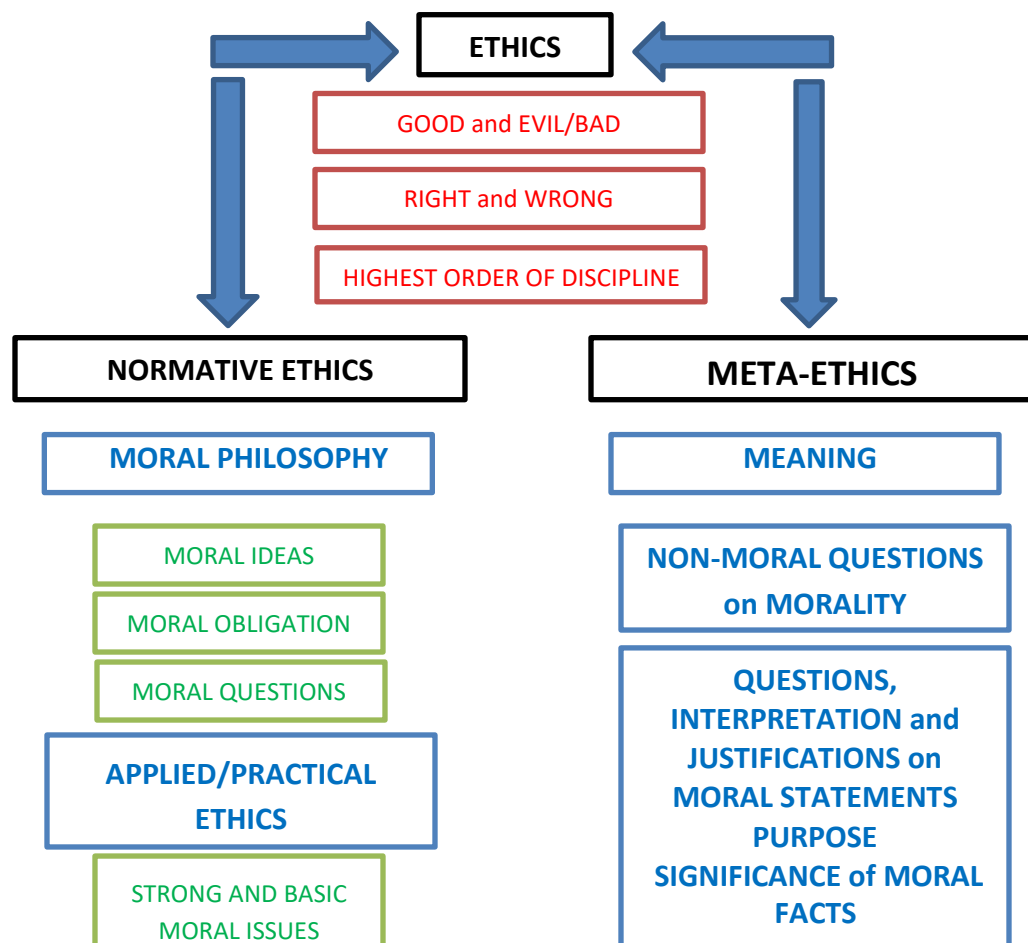


Figure 1. CONCEPTUAL FRAMEWORK OF ETHICS

1.1 IMPORTANCE OF ETHICS

Ethics is a set of rules that allows us to say right from wrong, good from the bad. Ethics can provide true, specific guidance to our lives. Ethical principles such as fairness, trustworthiness, responsibility help direct us to cope more effectively with ethical dilemmas by removing actions that do not adhere to our sense of right and wrong—our own moral interests—without compromising others.

Furthermore, ethics is all about decisions. We are continually faced with issues that affect the quality of our lives. We are certain that the choices we make have consequences for ourselves and the others. We are cautious of the responsibility that we have for our actions.

Why should other individuals have a lack of ethics? Bazerman and Ann Tenbrunsel (2011) identify the blind spots as the differences between who you want to be and who you are. Hence, most of us want to do the right thing, but internal and external factors are in the way.

However, ethicists put less emphasis on studying philosophic principles and, instead, emphasize the importance of establishing good habits of character – needs of doing the right thing in the right place and time in the right way.

The virtues of intelligence, bravery, patience, and justice guide ethical decision-making as they provide the basis for rational decisions when faced with an ethical dilemma. We ought to be ethical, as it determines who we are both personally and as a society. There must be moral principles that should be observed by all. Some people will lie; many may not do what they assume they will do, and others may behave irresponsibly and participate in harmful conduct.

For moralists, following one's interests is not wrong. Nevertheless, an ethical individual must be able – at least occasionally—to place the needs of others ahead of self-interest, because of our duty to civil society. (Bazerman, Max H. & Tenbrunsel Ann E. (2012), Silverstone, Sean (2011), <https://www.ethicssage.com/2017/03/why-do-we-need-ethics.html>)

According to Leano Jr. & Gunta-on (2018), the study of ethics should consider making it possible for an individual to fully understand what his conscience is, how he has gained it, how far he is willing and able to respect his outward manifestations with protection, and how well he can strengthen it and make it even smarter. Added to it, a person can gain a better insight into his claims to society as well as the obligations he owes to society. He must learn to distinguish between the respects in which all persons are highly dependent and those who are responsible for his or her own life and will focus on freedom of initiative. Eventually, it will at least allow certain observations, for understanding, self-sacrifice, and obligation, which will enable us to make these decisions.

From the standpoints of the authors mentioned above, several views on the importance of ethics were profounded and these are the following: (1) through ethics people can determine the difference between right from wrong, good and bad; (2) people can eliminate actions that do not conform to what is right; (3) people will be very careful to the actions and decisions to make; (4) people will not be disturbed of the internal and external factors of not doing the right thing; (5) establish good habits of characters of a person; (6) come up to rational decisions in facing an ethical dilemma; (7) it makes a person responsible in the family, school and society; (8) a person

becomes sensitive to the needs of others more than himself or herself; and (9) reminds a person to fully need conscience in decision making and a person can acknowledge the actions made.

1.2 THE DIFFERENCES OF MORAL AND NON-MORAL STANDARDS AND CHARACTERISTICS OF MORAL STANDARDS

Countries and nations rich or poor, developed and underdeveloped have their own set of laws, policies, cultures, traditions, customs, and beliefs. It may be acceptable to other countries but not acceptable to others. Some principles and values have social consequences, whereas some do not. It is a matter of moral indifference, that is, a matter of taste in one society may be a matter of moral meaning in another. For this reason, people need to recognize the difference between moral principles and non-moral ones, to define the basic ethical values that can direct our actions. Moral standards compel us to behave accordingly, although we have no right to insist on others on non-moral values based on the explanation above. (<https://www.philonotes.com>)

Moral standards refer to the guidelines we have on the types of acts that we find to be morally permissible and morally unacceptable. It primarily deals with issues that can either potentially threaten or greatly benefit human beings. Some ethicists placed moral ethics on par with social values and moral principles. (Leandro, Jr & Gubia-on, 2018)

Moral standards normally promote the common good, that is, the welfare and well-being of human beings, animals, and the environment. Moral standards are a blending of norms and values. Therefore, norms plus values pertain to moral standards. Norms as standards are basic guidelines regarding human acts. Values, though, are universal convictions as to what is acceptable, desirable, and beneficial or not.

There are several characteristics of morals standards as mentioned by Velasquez (2012) such as and vocabularies such as:

(1) Moral standards entail serious harm or benefit. Examples of this are the following: theft, the murder of innocent people, respect others, a feeding program for the poor, etc. The first two examples cause harm and the next two examples produce benefits and the action has done is helpful to human beings.

2) Moral standards are not determined by authority figures. Moral values should always be upheld, even though they are at odds with self-interest. Cheating on examination is an example wherein the students should not cheat during exams as a rule in an educational institution and in doing such an act, cheating, is wrong. It's not because students are afraid of the teacher, instructor, or professor but the students know that is a wrongful act.

(3) Moral standards should be adopted over other values, including self-interest. Moral standards should always be retained even if they are at stake with self-interest.

(4) Moral standards are focused on objective considerations. The basis of considerations and decisions must not be favorable only to a particular person or group. Anyone who commits

mistakes and wrongful acts then is punished accordingly. It must be an unbiased or impartial consideration.

(5) Moral standards are perceived to be universal. We want everyone to live up to these norms and feel resentful when somebody doesn't live up to them. Moral standards believed to be universal as it is applicable anywhere and anytime. For instance, lying. Telling the truth is a universal standard. Hence, we should not lie.

(6) Moral standards are correlated with different feelings and vocabulary. If anyone doesn't live up to the norm or standards, he will feel guilty, bad, and wrong. The same is true when someone else does not live up to the expectations, norms, and standards, others may feel disgusted at this person.

Non-moral standards, on the contrary, apply to laws which are not related to social or legal considerations. Perhaps these criteria are not inherently related to morality or, by their very definition, lack of ethical sense. Examples of non-moral standards are the following: etiquette, statutes, code of professional ethics, etc. (Leandro, Jr & Gubia-on, 2018)

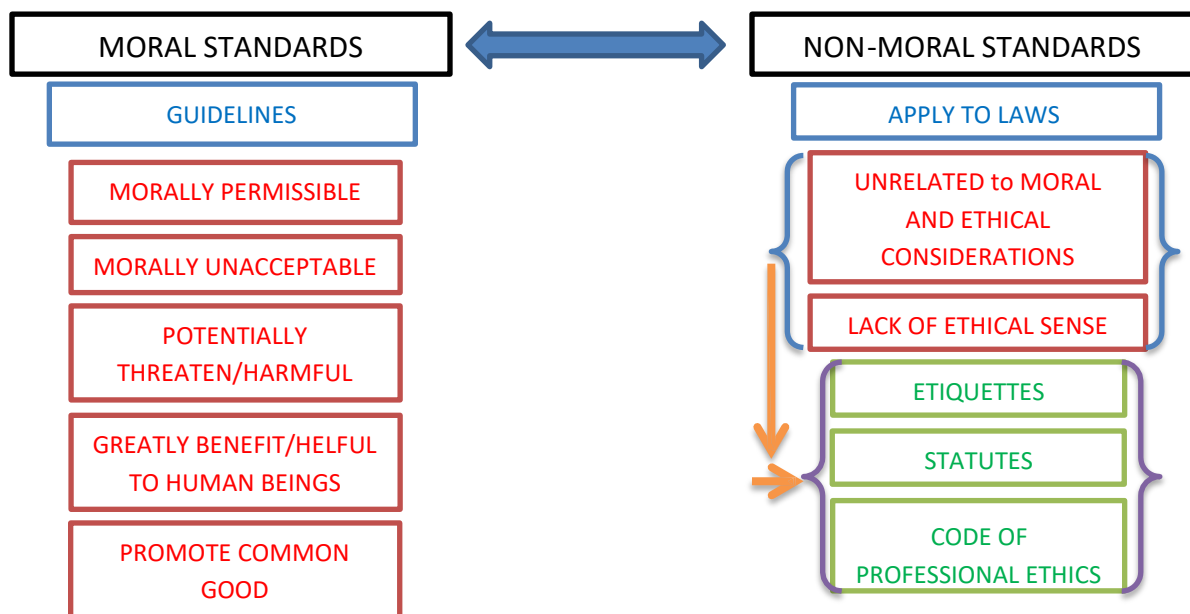


Figure 2. Summary of the Differences of Moral Standards and Non-Moral Standards

Etiquette is a decorum, propriety means reverence for the formal criteria governing conduct in a civilized society. Etiquette refers conventional ways and uses the rules of etiquette. Decorum implies modesty and a sense of what is becoming or is fitting for a person of good breeding: a fine sense of decorum. (<https://www.dictionay.com/browse/etiquette?s=t>) In the Philippines, noisily eating meals is unethical but in other countries like Japan. China and South Korea, in doing that show that a person likes the food especially in taking soup.

A statute is a written law passed by a legislative body as defined by Oxford English and Spanish Dictionary (<https://www.lexico.com/definition/statute>) Furthermore, As mentioned by the University of Melbourne Libray Guide, statutes shall contain Acts of the Congress, Local Charters, Municipal Codes, Districts, Administrative Rules and Regulations, Statutory Rules, and Presidential Issues. (<https://unimelb.libguides.com/c.php?g=402982&p=5443355>). REPUBLIC ACT No. 11463, An Act Establishing Malasakit Centers in all Department of Health (DOH) Hospitals in the Country and in the Philippine General Hospital (PGH), Providing Funds Therefor and for Other Purposes is an example of one of the statutes in the Philippines. The powers conferred by the laws on the Medical Director, the Chief of the Hospital, or the Chief of the Medical Center, the Director of the Malasakit Centers, shall oversee the proper management and effective operation of the Malasakit Center. If its powers do not conflict with any other form of law, it is legally binding. (<https://www.lawphil.net/statutes/statutes.html>)

Legality and morality are distinct, but often people are confused about these terms. We believe that what is moral is also legal and that what is immoral is not good. Not all that is lawful is moral.

The Professional Code of Ethics, consequently, is a set of guidelines intended to help practitioners differentiate between right and wrong to guide their decision-making. Such rules, also referred to as the Code of Ethics, define the purpose and ideals of the organization, how staff within the organization are to handle the issues, and the expectations to which workers are bound. (<https://www.indeed.com/career-advice/career-development/professional-code-of-ethics>)

The members of the profession to which he or she belongs have learned, approved, and complied with the laws, regulations, and conditions set down by the profession. Violations of the Code can result in the disapproval of the Members. In extreme cases, a lawyer may be excluded from a legal career and may prohibit him or her from practicing law. The essence of the Professional Code of Ethics is not a more comprehensive or fully accurate guide to one's moral obligations. Almost all professional codes are strictly moral in nature, and even so, the fact that a law is legally embodied as part of a professional code does not guarantee that it is a sound moral concept.

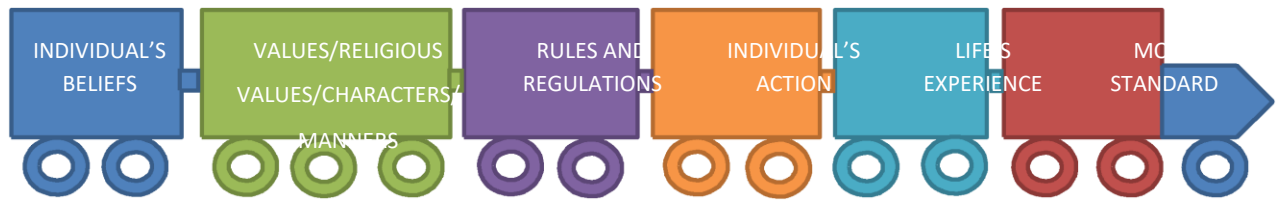
A practitioner must take the sanctions of his or her profession seriously, however, he or she also has the right to evaluate certain laws objectively for himself or herself.

1.3 HOW MORAL STANDARDS ARE FORMED

Morals are shaped by the beliefs of an individual. Values are the basis of the capacity of an individual to distinguish between right and wrong. Morals build on this to form concrete, context-driven rules that regulate the actions of an individual. They are formed from the experience of a person's life and are subject to opinion.

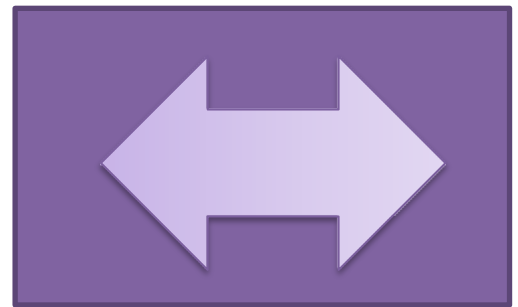
There are certain moral standards that all of us hold in our actions in society. There are various factors on how moral standards are influenced: (1) the moral values or principles that we conform

with, in our rearing; (2) the character and manners that imbibed with us by means of birthright; (3) the religious values that our forefathers taught us; (4) the values we learned from school; (5) the moral conduct, ways and habits of those people around us; (6) the direct and implied cultural norms; (7) our life experiences; and (8) our critical thinking in these experiences.





MORAL DILEMMAS



MODULE 2 WHAT ARE MORAL DILEMMAS

Introduction

This module is focused on moral dilemmas specifically on its definition, situations cases where moral dilemmas are present, and its three (3) levels namely: individual, organizational, and structural. In the three levels of moral dilemma, common ethical issues in the organization will be highlighted, several factors that an individual is facing such as peer pressure, personal financial position, and economic and social status which cause dilemma to an individual and the concepts to consider in the individual moral dilemma.

Learning Objectives

After studying this module, you should be able to:

1. Define moral dilemmas and set out situations.
2. Explain the three levels of moral dilemmas.
3. Discuss several factors affecting the organization, structure and individual.

Learning Content

2.0 DEFINITION OF MORAL DILEMMAS

Various authors presented their respective definition of moral dilemma or ethical dilemma and these are the following:

In the definition of Kvalnes (2019), a moral dilemma is a situation in which a decision-maker must give preference to one moral principle over another. Dilemmas occur when, confronted with a challenging situation (e.g. equal treatment for some versus job protection for others), two or more of that kind of values disagree with the understanding of the decision-maker, or when one assesses the moral option of another. A person experienced with a dilemma must decide whether the moral duty will be given priority; "whatever action is taken will offend an important moral value."

In addition, Kvalnes explained that (2019) a moral dilemma may arise as a result of a prior personal mistake. It's called a self-inflicted dilemma. In a strict sense, a moral dilemma is a situation in which moral values are of equal importance. In a broader sense, there may be moral dilemmas in which a person has strong moral reasons for acting which are described to be as remarkable, nonetheless, not equally strong moral reasons for acting in another way. (https://link.springer.com/content/pdf/10.18-3-030-15191-1_2.pdf)

According to Kurie & Albin (2007), a moral dilemma is a situation in which people assume that they should morally do one thing and that they should morally do another thing, and

occasionally a third thing or even a fourth thing, but they're not doing any of these mutually contradictory choices together.

The ethical dilemma or a moral dilemma as expounded by Figar & Dordevic, (2016) is a situation whereby a person has to make a decision. Among competing alternatives, which is the right (ethical) alternative and which is the best? (https://www.researchgate.net/publication/Managing_an_Ethical_Dilemma)

The above definitions characterized moral dilemma or ethical dilemma as:

- (1) Making an option to one moral value over the other;
- (2) A situation where moral values are equally significant;
- (3) A scenario where a person has a strong moral reason in action, but not equally strong moral reason in acting in another way;
- (4) A state where a person should morally do one, two, or more and have difficulty in deciding any of those conflicting choices.

Every human being, experience struggling to make a decision especially if there is an urgency to make a choice. Weighing what is good and moral. Thinking which is the best between and among choices, and perhaps at stake or in a hot sit when choosing. The choice may be favorable to some, however, not favorable to others. It gets individual stress of judging as to whether the decision is good or not in travailing circumstances. A moral dilemma or ethical dilemma applies to our personal life, in a job, in a profession, education, and some others. In any decision, an individual must analyze every aspect, scrutinize the pros and cons, and after several evaluations then finally decide. That is the most challenging part, nonetheless, makes an individual more mature in handling obstinate situations.

The sample photos below exemplify a moral dilemma. The first picture on the left side shows which arrow an individual will go, right or wrong. The second pic on the right side reveals four different arrows: respect, ethics, integrity, and honesty, these are all positive terms and regarded as values. In deciding, consider the aforementioned virtues. The third photo below the left side seems to be ambiguous and the last photo on the right side below with three choices for a decision, right, wrong and it depends which also mean uncertainty.





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<https://www.shutterstock.com/search/moral+dilemma>, <https://www.slaphappylarry.com/moral-dilemmas-childrens-stories/>, <https://medium.com/thrive-global/moral-dilemma-stories-a-great-way-to-educate-entertain-and-inspire-all-at-the-same-time-56ef4615b6ce>

2.1 THREE LEVELS OF MORAL DILEMMAS

1. ORGANIZATIONAL ETHICAL OR MORAL DILEMMA

As discussed by Lamberto et. al(2013), an organizational ethical dilemma refers to a situation that causes an organization to respond negatively or positively to an ethical issue that affects staff, shareholders, and society, as well as corporate ethics and customers. It includes also the leaders' ethical actions in preserving financial reporting integrity.

Based on the article of Michigan State University online.com (2020) and Small Business Chron.com (2019), there are common ethical issues in the organization such as

- (1) Unethical leadership/bad leadership behavior. A leader of the organization must act with candor, be an example to his subordinates, with upright moral values. He or she doesn't engage in abuse of leadership authority, accepting inappropriate gifts and other related unethical leadership.
- (2) Toxic workplace culture. A leader of the organization must focus on the development of work culture. He makes sure that his subordinates have work-life balance, motivated and happy working in the organization, If not then the performance and productivity of the employees will be affected.
- (3) Discrimination and harassment/ Peril of employee favoritism. A leader must treat fairly his or her subordinates and avoid any form of discrimination and harassment.
- (4) Unrealistic and conflicting goals. A leader must have realistic and very clear goals so that his or her subordinates understand what the organization is going through, hence, they can work together thoroughly until they reach the goals of the organization.
- (5) Use of the organization's technology, social media use, technology, and privacy concerns. It is ethical that the technology of the organization must only use for the organization's transactions Social media use while in the office must be avoided as much as possible so that important dealings with the clients must be prioritized.
- (6) Business travel ethics. There are times that a leader and an employee are in official business and in doing that, they have per diem every meal and must use the fund of the organization appropriately.

(<https://www.michiganstateuniversityonline.com/resources/leadership/common-ethical-issues-in-the-workplace/> updated July 15, 2020, <https://smallbusiness.chron.com/common-types-ethical-issues-within-organizations-15238.html>, updated February 4, 2019)

2. INDIVIDUAL MORAL DILEMMA

As mentioned by Smith (2018), individual ethical or moral dilemma pertains to a situation where individuals confront with a number of factors such as peer pressure, personal financial position, an economic and social status which may influence all individual ethical standards. (<https://yourbusiness.azcentral.com/three-levels-ethical-standards-business-organization-15897.html>)

Socialization is part of every individual's life. It is just a query as to whether an individual remains aware of doing what is good and what is right. There are times that due to peer pressure, an individual engages in a certain scenario in which may change their behavior and attitude. For instance, before that young people, A is a responsible and obedient child to his parents. When he met young people B and young people C, young people A tremendously transform as a human being, his character shifted to an irresponsible, hard-headed, and a trouble-maker. The reason is that his friend young people B and young people C taught him to take illegal drugs. Others, however, are affected by the financial standing position, the social and economic status of others that even he is not capable, forcing him or her that he or she is at the same level as them, portrays that he or she belongs to the group, and called to be as social climbers. A human being should bear in mind that living in this world is not easy. He must be strong enough to stand still independently and not be influenced by undesirable pressures. It is alright to enjoy life as long as a person knows his boundaries and limitations and others will not be affected by what he or she does specifically the unwanted acts. Human beings must not be confused nor ambiguous and put himself or herself in a dilemma where he doesn't know what to do and decide to what is good and what is right.

3. STRUCTURAL MORAL DILEMMA

The structural moral dilemma is that selecting a proper system of responsibilities and relationships, which is a continuing universal challenge.

There are five concepts in the structural moral dilemma to consider namely:

(1) Differentiation vs. Integration

The conflict between the distribution of jobs and the organization of numerous activities generates a classic dilemma. The more complicated a task structure, the more difficult it is to sustain a centered, tightly coupled organization. When complexity grows, the company needs more complicated and expensive management techniques. Laws, regulations, and directives need to be balanced by lateral approaches.

(2) Gap vs Overlap

When the main tasks are not explicitly defined, the critical job will slip through gaps. In a similar manner, functions and activities can overlap, causing conflict, wasting time, and unintended duplication of responsibilities.

(3) Lack of Clarity vs. Lack of Creativity

When employees are not clear about what they are expected to do, they often adapt their tasks to personal interests instead of system-wide goals that often lead to problems. Yet when people's duties are over defined, they comply with their positions and procedures in a bureaucratic manner. They specifically follow job requirements as to how much the service or product fails.

(4) Excessive Autonomy vs. Excessive Interdependence

When individuals or groups are too independent, they are always isolated. On the other hand, if the units and responsibilities are too closely connected, people are absentminded from work and waste time or excessive coordination. (http://www.humancapitalreview.org/content/default.asp?Article_ID=528)

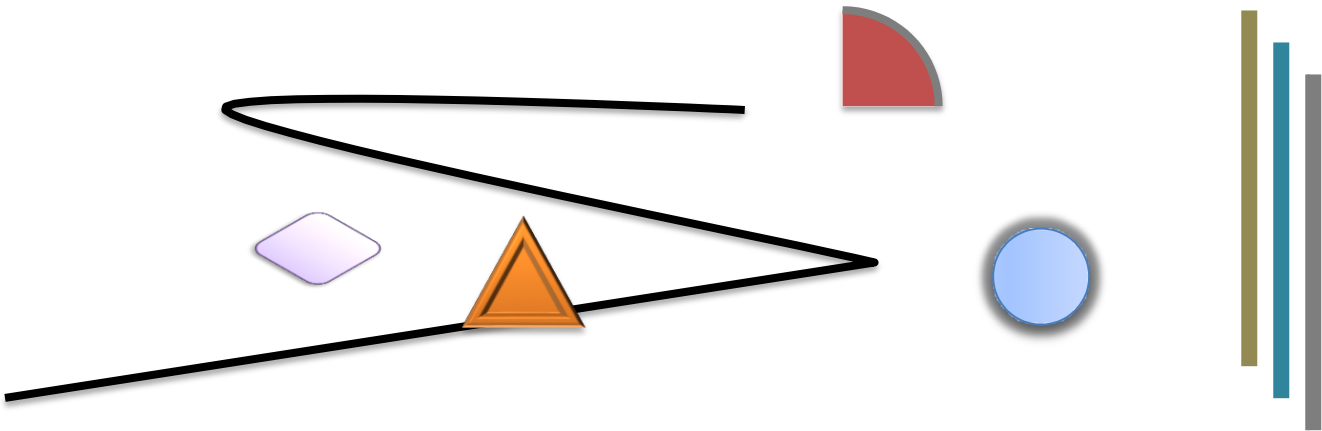
Based on the discussion above, to avoid structural moral dilemma then following characteristics must be maintained:

(1) Must have well-distributed jobs and the laws, policies, rules, and regulations must be balanced through lateral approaches.

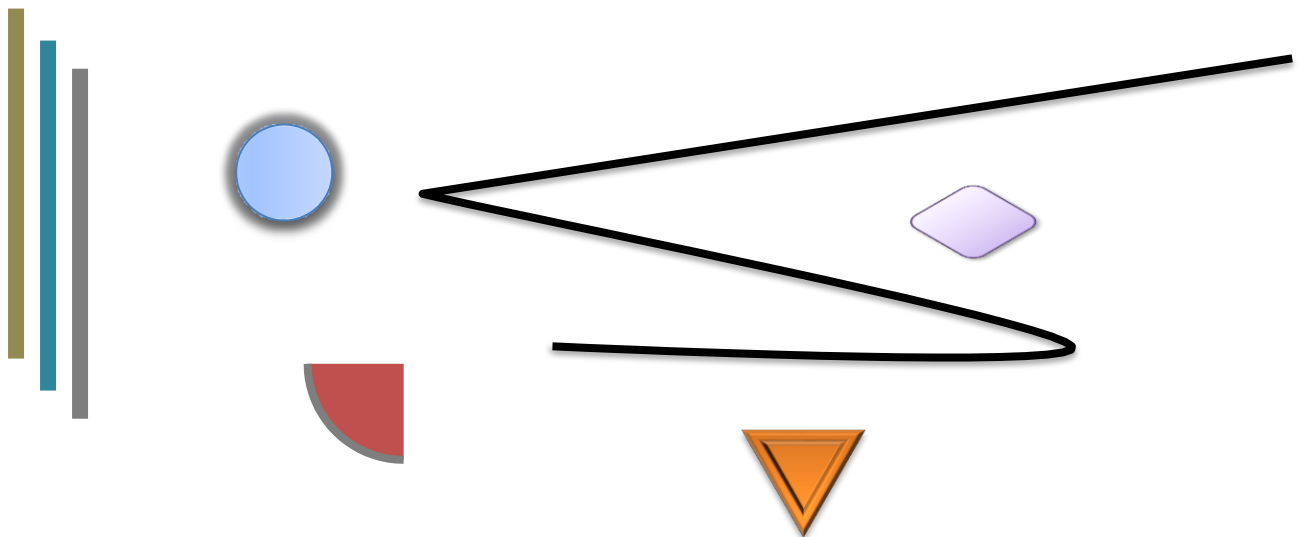
(2) Must have an implicitly defined job description, roles, and duties to evade from gaps and overlaps.

(3) Must have a clear-cut expectation of the tasks in a wide range of goals

(4) Must have a well-balanced interdependence and coOrdination.



FREEDOM as FOUNDATION for MORAL ACTS



MODULE 3

FREEDOM AS FOUNDATION FOR MORAL ACTS

Introduction

This module seeks to answer the following topics such as Kant's philosophy on freedom and morality, the principles of justice and fairness and the different kinds of justice plus the insertion of taxation in the Philippines as a special topic on equality, justice and fairness.

Learning Objectives

1. Present Kant's philosophy on freedom and morality, the principles of justice and fairness.
2. Describe the principle of justice and fairness and the different kinds of justice.
3. Explain the justice and fairness in taxation in the Philippines

Learning Content

3.0 KANT'S PHILOSOPHY ON FREEDOM AND MORALITY, THE PRINCIPLES OF JUSTICE AND FAIRNESS

1. KANT'S PHILOSOPHY ON FREEDOM

Kant's definition of freedom is the right to control one's actions based on reason, not desire. All of this can be simplified to the definition of autonomy. The term Autonomy derives from the Greek term, which translates into self-legislator. The principle, then, is not to live by the animalistic rules forced on them from birth, but rather to live by the laws that you enforce on yourself. Therefore, from Kant's point of view, libertarian freedom is not absolute, but in fact, it is the subjugation of oneself to one's wish.

There is only one inherent right, "says Kant," freedom (independence from being limited by the option of another) to the degree that it can coexist with the freedom of each other following universal law". Kant opposes any other justification for the state, in particular by arguing that the welfare of people can not be the foundation of state power.

He claims that the state can not legally enforce any specific definition of happiness on its people. It will be for the dictator to see people as infants, believing that they are incapable of grasping what is beneficial or detrimental to themselves.

Freedom is not the only reason for the ideals that underlies the state. In Theory and Practice, Kant makes equality the first of three concepts, such as the freedom of a human being as a member

of a state, the dignity of each person as a subject, and the freedom of any member of the commonwealth as a resident.

As discussed in “Theory and Practice” Freedom highlighted the autonomous right of all individuals to conceive of happiness in their way. Interference with another’s freedom is understood as coercing the other to be happy as the former sees fit.) (<https://plato.stanford.edu/entries/kant/#Fre>)

Immanuel Kant accentuates the following philosophy on freedom:

1. Individuals have the right to choose one's conduct based on reason, not desire.
2. Individuals have to abide by the rules that they follow.
3. Individuals are independent from being limited by the option of others to the extent that they may coexist with each other's freedom under universal rule.
4. Equality is the most among the various freedoms and freedom is the only inherent power. The three concepts of freedom are the freedom of a human being as a member of a state, the dignity of each person as a subject, and the freedom of any member of the commonwealth as a resident.
5. Individuals have an autonomous right to be happy in their own way, and the intervention of another's freedom means forcing others to be happy.

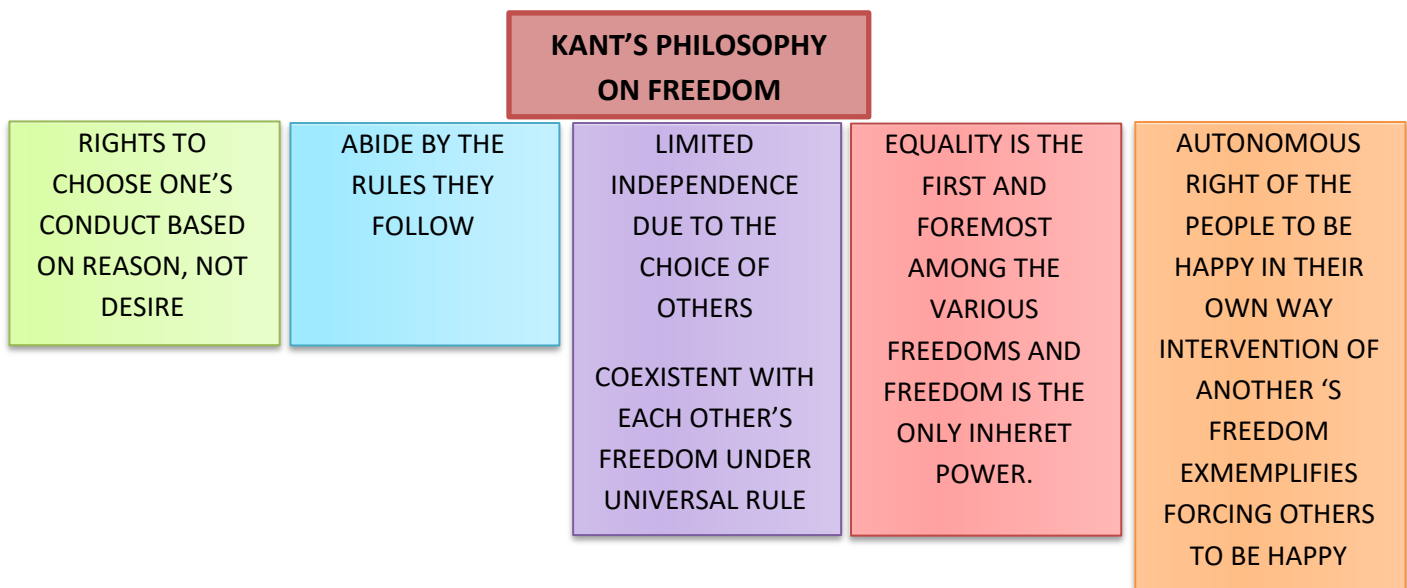


Figure 1. Summary of Kant's Philosophy on Freedom

2. KANT'S PHILOSOPHY ON MORALITY

Kant based his ethical philosophy on the idea that reason should be used to decide how people will behave. He did not attempt to recommend concrete action but advised that reason should be used to decide how to behave. Below are the main Kant's philosophy on morality.

1. GOOD WILL AND DUTY

Kant based the idea of obligation on ethical law. Kant started his ethical philosophy by arguing that the only virtue that can be uncontroversially good is good will. No one virtue has this position, since

any other virtue may be used to accomplish unethical ends (for example, the virtue of loyalty is not good if one is loyal to the evil person). Good will is unique as it is always good and retains its moral values even though it fails to achieve its moral intentions. Kant found good will to be a common moral concept that openly wishes to use certain virtues for moral purposes.

In addition, to Kant, good will is a wider conception than the will of obligation. A will which acts out of obligation can be described as a will which overcomes barriers to the preservation of moral law. Dutiful will is thus, a special case of good will which is evident under unfavorable conditions. Kant believes that only actions committed concerning obligation have moral meaning. This is not to suggest that actions performed solely in compliance with duty are meaningless (they still deserve recognition and encouragement), but that special respect is granted to acts performed out of duty.

Moreover, Kant's definition of obligation does not mean that people carry out their duties reluctantly. While duty also restricts people and induces them to act against their inclinations, it still stems from the voluntariness of an agent or a person: they want to abide by moral law. Therefore, when an agent takes duty action, it is because reasonable interests matter most to them than their opposing inclinations.

2. PERFECT AND IMPERFECT DUTIES

Having applied the categorical imperative, duties emerge because failure to perform them will either result in a contradiction of conception or a contradiction of will. The former are categorized as perfect tasks, and the latter as imperfect. The perfect duty is always true. There seems to be a perfect duty to tell the truth, so we must never lie. Imperfect duty requires flexibility. Beneficence is an imperfect duty because we are not obligated to be absolutely helpful at all times, but should choose the times and places in which we are. Kant believes that perfect duty is more important than an imperfect duty: when a conflict of duty arises, perfect duty must be carried out.

3. CATEGORICAL IMPERATIVE

Categorical imperative command unconditionally. Irrespective of our wishes or desires, a categorical imperative binds us as everyone has a responsibility not to lie, regardless of conditions and even though it is in our interest to do so. A hypothetical imperative is one that we must fulfill if we are to satisfy our desires or command conditionally on your having a relevant desire. These imperatives are legally binding because they are founded on reason, about an individual and not subjective evidence. In addition to hypothetical imperatives, these bind us to the degree that we are part of a community or society to which we owe an obligation, we can not get out of the categorical imperative and we can not opt out of being moral agents. We owe an obligation to reason because we are rational agents; thus, rational moral principles extend to all rational agents at all times.

4. UNIVERSALIZABILITY

When anyone acts, it's a maxim, or a principle. For Kant, an act is only permissible if one can have the principle that allows an action to be the universal law by which everybody acts. Maxims fail this test if, when universalized, they create either a contradiction in conception or a contradiction in the will. A contradiction in conception arises because, if the principle is to be universalized, it fails to make sense, since the "limit will inevitably ruin itself as soon as the universal law has been created." The maxim is not rational because it is theoretically impractical to universalize. We could not think of a world where this maxim has been universalized. The maxim may also be unethical because it causes an inconsistency in the will when it is universalized. This does not mean a logical contradiction, but that the universalization of the maxim contributes to a state of affairs that no rational being would want.

Kant argued that morality was the objective law of reason: just as objective physical laws involved physical action. Objective rational law requires rational action. He, therefore, assumed that a perfectly rational being would also be perfectly moral since a perfectly reasonable being feels it necessary to do what is rationally necessary. Since humans are not completely moral (in part acting by instinct), Kant claimed that humans had to comply with their subjective will with objective rational rules, which he called conformity obligations. Kant believed that the objective rule of reason is a priori, arising outward from rationality. Just as physical laws occur before human beings, logical laws (morality) occur before rational beings. According to Kant, therefore, objective morality is fundamental and can not change depending on the circumstances. (<https://courses.lumenlearning.com/sanjacinto-philosophy/chapter/kantian-ethics-main-concepts/>)

5. HUMANITY AS AN END IN ITSELF

The second interpretation of Kant's Categorical Imperative is to view life as an end in itself: "Act in such a way that you treat humanity, whether in your own person or in the person of another, always at the same time as an end and never simply as a means." (Immanuel Kant, Groundwork for the Metaphysics of Morals)

Kant argued that rational beings should never be viewed simply as a means to ends; they must also be viewed as ends themselves, demanding equal regard for their own logical motives. This stems from Kant's argument that reason motivates morality: it allows us to value reason as motivation in all beings, including others. A rational being can not rationally consent to be used merely as a means to an end, so it must always be treated as an end. Kant explained this by arguing that moral obligation is a logical necessity: that which is logical is morally right.

Kant's expounded five moral philosophies.

- (1) The goodwill and duty where he described it as one of a kind because it is always good and maintain moral values. It is a moral concept that freely seeks to use values for moral reasons. Kant added that that good will is more of a conception rather than obligation. A will that acts out of duty can be defined as a will that overcomes the obstacles to the protection of moral law. It is not to say that actions carried out purely in compliance with duty are pointless (they still merit praise and encouragement), but that extra regard is accorded to activities carried out on duty.

- (2) Kant differentiate perfect and imperfect duties. Perfect duties for Kant is always true and it is more important than imperfect duties. Telling the truth is an example of a perfect duty. If there is a conflict between the two then perfect duty must be given importance. In contrast, for Kant flexibility is indispensable in imperfect duty. As a human being, an individual can help the needy but still he or she cannot do it all the time. Therefore, in perfect duty, it is a must to do what is good while imperfect duty you do good but it is not an obligation to do so.
- (3) Kant also made a distinction between categorical imperative and hypothetical imperative. The categorical imperative for him is a rule of behavior that is unconditional or absolute for all agents or persons whose truth or argument does not depend on any purpose or end. Conversely, a hypothetical imperative is a rule of behavior relating to a person the idea that only if he or she desires a certain end and has decided to act on that desire. In other words, in categorical imperative, the action to be done does not depend on the result or desire or not conditioned by desire. However, in hypothetical imperative, the basis of the action to be done is what I want and the means to get it.
- (4) Besides, universalizability is was set off by Kant. The theory of universalizability centered on the action to be acceptable or permissible, this theory must be applied to all citizens without any contradictions. Meaning, when someone commits a crime he or she will be punished regardless of social and economic standing. The law must be applicable to all.
- (5) Humanity as an end itself of Kant pointed out that a human intrinsic worth does not depend on something else, it does not depend on whether a person loves his or her life or makes other people's lives better. A human being live so he or she has value.

3.KANT'S PHILOSOPHY ON JUSTICE AND FAIRNESS

Kant's corollary meaning of justice and fairness are the following:

- (1) Justice involves external acts through which an individual may directly or indirectly influence others.
- (2) Justice does not affect the desires, wishes, or needs of others.
- (3) Justice is concerned primarily with the nature of interpersonal relationships and not with their substance.

The first two concepts of justice of Kant include the voluntary ideals of benevolence and charity, while justice concerns whether or not we value the fair right of others to live their lives as they see fit. The third concept of justice illustrates a situation, let say if Mr. A buys something from a store, justice is served if the nature of the partnership is voluntary.

If the store expects to benefit from the sale or how much the store earns then these and related concerns pertain to the substance of the sale and do not fall under the purview of justice.

Being just and fair is not about having influence with other people particularly to those in the higher-ups or those who are considered influential. If this is the situation then justice and fairness are in trouble. Desires, wishes, or needs of others has nothing to do with justice, it does not matter. An interpersonal relationship is more valuable than content. The interpersonal relationship must be voluntary.

3.1 TAXATION IN THE PHILIPPINES THE RULES EMBODIED UNDER THE LAW

Taxation policy in the Philippines is regulated primarily by the Constitution of the Philippines and the three Republic Acts.

- (1) Constitution: Article VI, Section 28 of the Constitution provides that "the rules of taxation shall be uniform and equal" and that "a democratic system of taxation shall be established by the Congress."
- (2) National law National Internal Revenue Code—enacted as Republic Act No. 8424 or the Tax Reform Act of 1997 and subsequent laws amending it; most recently, the Law of the Republic No. 10963 or the Law on Tax Reform for Acceleration and Inclusion was amended
- (3) Local laws: the major sources of revenue for local government units (LGUs) are taxes imposed under the Republic Act No. 7160 or the Local Government Code of 1991 and those imposed on revenues levied under state law.
- (4) Taxes levied at national level are collected by the Office of Internal Revenue (BIR), whereas those levied at local level (i.e. provincial, city, municipal and barangay) are collected by the Office of Internal Revenue (BIR).

Under the 1987 Philippine Constitution mentioned above, “the rules of taxation shall be uniform and equal.” According to LawDictionary.com, (2015) “Uniformity in taxation means equity in the burden of taxation, which can not occur without uniformity in the mode of assessment as well as in the rate of taxation. It must also be applied to all property subject to taxation so that all property can be taxed alike and equally. On the other hand, equity is the principle that taxes should be equal and should be based on the willingness of different individuals to pay, which is generally related to their income as stated in the Ideceonline.com dictionary.

To analyze the provisions aforementioned, an individual should pay an income tax based on his or her salary received with a certain percentage and the property can be taxed according to assessed value and rates of the property. An individual as well can be taxed based on his or her capacity to pay taxes. The government cannot force an individual to pay taxes without a job or no

house owned, though it is mandatory under the law. It is only applicable who has income and properties respectively.

A decorative graphic framing the central text. It consists of four hexagons at the corners: blue (top-left), light blue (top-right), green (bottom-left), and orange (bottom-right). Each hexagon is connected to the central text area by three parallel horizontal lines. Additionally, there are three vertical lines (orange, blue, and green from left to right) on each side of the central text area.

**WHAT IS
CULTURE? HOW
DOES IT DEFINE
OUR MORAL
BEHAVIOR?**

MODULE 4

WHAT IS CULTURE? HOW DOES IT DEFINE OUR MORAL BEHAVIOR?

Introduction

This module intends to discuss culture in different perspectives, the influence of culture in moral development, and partly include as well the characteristics of Filipino culture and the weaknesses of Filipino character.

Learning Objectives

After studying this module, you should be able to:

1. Demonstrate what culture is and how it influence moral development.
2. Apply the culture in a positive way and improve the Filipino character.
3. Discuss culture profoundly through analyzing the characteritics f Filipino culture.

Learning Content

4.0 WHAT IS CULTURE?

According to Kohak (1984), culture is at the root of human alienation from the environment. It's not just a compilation of artifacts or reflection of people's preferences and appreciation of beauty. He added that culture is derived from the Latin word, “cultus”, which means giving respect to the sacredness of all. Originally, culture is not contrary to nature but is commonly accepted as a human being's role in it.

Cole (2019) defined culture as a concept that refers to a broad and diverse collection of often intangible areas of social life. According to sociologists, culture consists of ideals, beliefs, language systems, communication, and behaviors that people have in common and that can be used to describe them as a group. Culture also encompasses material objects which are special to that community or society. Culture is distinct from the social structure and economic aspects of society, but it is related to them both by educating and updating them on an ongoing basis.

Lederach, (1995) introduced culture as the collective knowledge and schemes generated by a group of people to perceive, view, convey, and react to the social realities around them.

Zimmerman explicated (2017) culture as the characteristics and awareness of a specific community of people, including language, religion, food, social behavior, etiquette, fashion, music, and the arts.

From the definitions above of culture, several characteristics were drawn:

1. Culture is an analects of items with cultural or historical interest.
2. Culture is a remark of peoples' choices and admiration of beauty.
3. Culture is in harmony with the environment and an individual has a role to play on it.
4. Culture is wider in scope as it includes beliefs, ideals, communication, language systems, behaviors, and commonality of people within a group.
5. Culture embraces material objects that are significant to a particular group or society.
6. Culture is related to the social structure and economic aspects of society.
7. Culture is a combination of the skills, talents, capacities, and artifices brought about by a group of people to look at, relay messages, and respond to the realities of social life.
8. Culture is the attributes and observation of a particular group of people which includes language, religion, social behavior, etiquette, fashion, music, and arts.

4.1 THE INFLUENCES OF CULTURE IN MORAL DEVELOPMENT

Leano & Gubia-on (2018), Baring (shared five points in how culture influences the moral development of the people and these are the following:

1. Culture is always social and communal by which the relationship of the people towards one another and their experience as people are the culture's meadow.

Culture is social and communal in character where the people established and develop their relationships with each other and learned from their experiences with them in the community. Laws, norms, values, and attitudes serve as a binding force to enhance their relationships. From that perspective then culture influence the moral development of the members of the community. Yes, culture passes from one generation to the other and probably maintains or changes the systems, principles, and values due to transformation in society but still retains the traditional ways that the community has.

2. The culture defines the normative principles and behaviors of society.

This refers to the definition of the principles and behaviors to be maintained, preserved, and changed for the benefit and best interest of the members of the community. From the relationship and experience of the members of the community where the community itself would be able to form certain normative principles and behaviors to be relayed and to be taught to the members of that community. This scenario influences the culture of that community in moral development.

3. A culture, as best exemplified in the experience of the people, develops restrictions and sets boundaries and limitations as they live and relate with one another.

The restrictions and boundaries will serve as the protection and security of the members of the community. Laws, rules, principles, and norms will be the guidelines for the members of the

community to behave accordingly, and if not then they will be subject to the punishment or sanction embedded in their culture. This shows that there will be an awareness of the moral development of the members of the community.

4. As culture helps in generating the character and identity of its people, it also includes their moral character.

Culture shapes the character and identity of the people in the community through the norms, standards, rules, regulations, and laws. If the community is traditional or modern in character then that is the way the members of the community will learn and experience but of course, not all have good implications.

5. The culture identifies the authorities or the governing individuals or groups.

The authorities serve as the maker, interpreter, and implementer of the laws, rules, and regulations that they have in the community. Whatever form, a system of governance that they have the roles and duties to play in the community and their moral judgment is important in moral issues in the community. In the family, the parents have the moral authority over their children which is also essential for the moral development of the members of the family as the parents are the first who have authority to their children, who have taught and learned from them.

Obviously, culture greatly influences the moral development of an individual. Based on the discussions above, several points were given emphasis. As culture considered to be as social and communal in nature, then the people within the community able to establish and develop their relationships through learnings and experiences in the community. Their relationships are bound by the rules, regulations, principles norms, laws, and standards that the community has. There are defined principles and behaviors that need to be kept, promoted, and rejected for the best interest of the members of the community. Restrictions and boundaries will serve as the security of the people which will be passed to them so that are aware of them. Moreover, culture helps in generating the identity and moral development of the members of the community through the standards, norms, rules, principles, and laws. The maxims to be followed by them. The authorities direct the community for the proper enforcement of the rules, regulations, and laws for the welfare of everyone.

4.2 CHARACTERISTICS OF FILIPINO CULTURE

Dumaraos (2018) expounded some of the characteristics of the Filipinos that set them apart from any other culture and society:

1. The Filipino people are very resilient.

Despite the negative experience of the Filipinos particularly during calamities and catastrophes, Filipinos able to manage and handle a difficult situation lightly. They can still smile and always manage to rise above the challenge.

2. Filipinos take pride in their families.

Filipinos first and foremost priority is the family. Thus, whether you are part of the immediate family or you belong to the third and fourth generation you are cherished as a family member. Even the closest friends are regarded as a family too.

3. Filipinos are very religious.

There are so many religions in the Philippines, nowadays, different denominations and yet they value their beliefs. For the Roman Catholics, they pay their respect to the different cross, images of Sto. Nino, the Little Christ, and other religious articles can be found in the house. Every almost all religion, they go to Church every Sunday and sometimes twice or three times a week.

4. Filipinos are very respectful.

Filipinos used po and opo, words that usually at the end of the sentences when addressing the elders. They also pay respect to someone older than them through pagmamano which means raising the backs of the hands of their elders to their forehands as a sign of respect.

5. Filipinos help one another.

Filipinos are known to bayanihan or community spirit where everyone helps each other to make the task easier without expecting in return.

6. Filipinos value traditions and culture.

Filipino traditions and culture are very important for Filipinos. They spent time on celebrations such as birthday parties, reunions, festivals, etc. They dedicate every gathering for continuing a good relationship with each other even over lavish food.

7. Filipinos have the longest Christmas celebration.

In the Philippines, Christmas songs started to play in the malls, restaurants, respective homes from September and last until the second week of January the next year. They hang a garland and assembling the Christmas tree with the decoration of balls in different colors, toys, and others. Children and adults, any generation are excited to sing Christmas carols to every house. They have misa de gallo and noche buena for the celebration of Christmas with the family.

8. Filipinos love art and architecture.

The gigantic and tall buildings everywhere signify Filipinos creativity in art and architecture. They love to design, think, and have a passion for aesthetic value which is unique and different.

9. The Filipinos are hospitable people.

The visitors whether foreigners or Filipinos are very much welcome for the Filipinos during festivities and even on occasions that when they arrive at the place, the Filipinos entertain them wholeheartedly. Offer the best food, utensils, and the place to stay. The visitors will feel at home.

4.4 WEKNESSES OF FILIPINO CHARACTER

1. Extreme Personalism

The Filipinos always try to give an interpretation of the actions or they take things personally. They say thank you with "but" (compliment-criticism-compliment)

2. Extreme Family Centeredness

The Filipinos have very high family protection whether in good or poor condition and circumstance (consentidor) (overprotected)

3. Lack of Discipline

The Filipinos have a rather relaxed attitude, but bad time management (famous Filipino time). They are impatient and unable to postpone incentives or rewards. They want to take shortcuts or the 'palusot' scheme and careless.

4. Passivity and Lack of Initiative

They're demanding someone's accomplishment, so they're not displaying the same flag just because of race. They are rather complacent (relax) but they often have a sense of urgency. The Filipinos have a positive personality, but a lack of self-confidence and a deep desire to achieve their goals. They are strong at the beginning, but they have no sense of consistency (sometimes no direction at all or no strategy at all). Besides, they are too patient without any plan (matiisin) "Bahala na System"-no matter what, come what may, at least we tried (paconsuelo) attitude. They may have questions and discussions or disagreement first, rather than analyzing the situation before planning and action.

5. Colonial Mentality

Filipinos have what we call patriotism vs active awareness mentality. They appreciate too much other nationality and foreign products than native ones (local vs imported) They even lack love and appreciation for what they have. Furthermore, they have Open outside but Side-open or Close inside character (it's ok and best to receive more than to share)

6. Kanya-kanya Syndrome

Filipinos have self-serving attitude that generates feeling of envy and competitiveness towards others (status vs prestige). They have personal ambition but insensitive to common will (people and own country). There is also a crab mentality attitude (Hilahan and Inggitan System) instead of being happy to what are the accomplishments of others they try to pull them down. Finally, they lack of appreciation resulting unhealthy competition.

7. Lack of Self Analysis and Reflection

Filipinos are superficial and dreamy. They lack self-evaluation and reflection of the situation. (<http://evotistavenue.weebly.com/asean-youth-org/strengths-and-weaknesses-of-the-filipino-character>, <https://sites.google.com/site/philippinescomph/about>)



MODULE 5 CULTURAL RELATIVISM

Introduction

This module aims to discuss cultural relativism in different aspects, its definition, advantages and disadvantages.



After studying this module, you should be able to:

1. Explain cultural relativism in different views.
2. Discuss profoundly the advantages and disadvantages of cultural relativism.



5.0 DEFINITION OF CULTURAL RELATIVISM

Below are the definitions of cultural relativism of the various authors:

Cultural relativism means that we do not judge a society by our own criteria of what is right or wrong, odd or natural. Rather, we will make an effort to understand the cultural traditions of other communities in their own cultural context.

Cultural relativism is the desire to consider a culture on its own terms and not to make conclusions based on the norms of one's own community. The goal of this is to foster the awareness of the cultural traditions that are not usually part of one's own culture. (Philosophy Home, 2009. <http://www.cultural-relativism.com/>, Lorber, Judith. "Night to His Day": The Social Construction of Gender." From Inquiry to Academic Writing: A text and Reader. Boston: Bedford/St. Martin's, 2008. 617-)

The concept of cultural relativism also means that any opinion on ethics is subject to the perspective of each person within their particular culture. In a holistic understanding of the term cultural relativism, it tries to promote the understanding of cultural practices that are unfamiliar to other cultures such as eating insects, genocides or genital cutting. (<https://courses.lumenlearning.com/culturalanthropology/chapter/cultural-relativism/>)

Cultural relativism (CR) is a moral theory that contends that there are no objective universal moral rules, and the moral rules that do exist are culturally bound. In other words, there is a negative claim that there are no moral claims such as that killing is wrong that would apply to every culture, and there is a positive claim that there are moral rules, but they vary depending on culture, society, and context. (http://davidagler.com/teaching/bioethics/ethicaltheories/Handout2_CulturalRelativism.pdf)

Generally, CR is an attitude towards the meaning and role of values in various cultures. CR means that the beliefs in terms of norms and behaviors in a particular culture are specific to that society. (<https://shodhganga.inflibnet.ac.in/bitstream/10603/51330/9/09.chapter%202.pdf>)

The definitions of cultural relativism stated above are summarized to the following:

1. In cultural relativism, no one can judge a society by their standards in the principle of right or wrong, eccentric or natural.
2. People must understand other societies' cultures.
3. In cultural relativism, the aim is to strengthen our knowledge and interpretation of the practices and cultural traditions that are not part of our culture and that not uncommon to other cultures.
4. Cultural relativism is a moral theory that claims the idea of no objective universal moral rules that would apply to every culture and it varies depending on the culture of the society.

In the case of Islam, for instance, to marry five times are allowed as long as the man is capable to support them while in Christianity, it is punishable by the law if any man or woman are married twice as it is bigamous as stated in Article 349 of the Revised Penal Code and the second marriage will be void from the very beginning if the first marriage is valid under Article 35 of the Family Code. The moral standards of every society differ from the other and for that reason, any culture should be respected by anyone. We cannot say that it is right or wrong because that culture permits them to do so and the other societies' cultures would view the same that is right or wrong or vice versa. What is moral to other societies may not be moral to our societies and what is moral to our societies may not be moral to them. It is indeed hard to reconcile the conflicting cultures of the societies with their respective moral standards. The boundaries would be the understanding and acceptance of the cultures of the societies.

4.1PROS OR ADVANTAGES OF CULTURAL RELATIVISM

Below are the advantages of cultural relativism:

1. It creates learning opportunities that could make humanity stronger.

The cultural difference allows people to learn as they can compare their respective cultures and from those differences, they can improve their lives.

2. It eliminates the concept of separate, but equal.

Across culture, there are groups of people who have common beliefs and values, but who face prejudice, injustice, and differences depending on the classes they belong to. This will eliminate the idea of being different yet equal by cultural relativism.

3. It creates a system of niche expertise.

People will concentrate on the things they do better when cultural relativism is stressed. There will no longer be a need to strengthen the points of weakness since the weakness of one individual is the strength of another. Individuals will have to reflect on their strengths instead of their weaknesses.

4. It encourages respect.

Different cultures have different backgrounds and perspectives to support civilization. With cultural relativism, these interactions and viewpoints contribute to the common good, as it helps us to benefit and learn from each particular viewpoint in their way.

4.2 THE CONS OR DISADVANTAGES OF CULTURAL RELATIVISM

Below are the disadvantages of cultural relativism

1. There will be actions taken that would be defined by some as “violent,” “unsafe,” or “wrong.”

Since each person can set his or her moral code of conduct, there will be those who choose to perform acts that the majority of people will interpret as wrong. Murder, robbery, child abuse, all of these will become legally viable acts if that person's morality described them as being good.

2. It is based on a concept that people are perfect.

We may all like to think that we're perfect but the fact is that we're all far from it. The theory of cultural relativism is based on the premise that society can be perfect. Perhaps we're going to be one day, but that day is certainly not today.

3. It creates a personal bias.

Cultural relativism is a worthy goal. Societies have a natural prejudice against them, which pushes certain people down to lift people. All cultural relativism does move

accountability from a group perspective to an individualistic perspective. Promoting a particular set of morals is the focal point rather than the promotion of a collective set of morals.

4. It eliminates the idea that reform or change can be a good thing.

Any of the greatest thinkers and teachers to be followed in history will all be deemed wrong in a system of cultural relativism. Then there is no need to change hearts and minds, as they are all held to their standards. Extend that in the workplace, and suddenly unsafe working conditions, low to no pay, and sexual slavery all become reasonable choices.

The benefit of cultural relativism is that it teaches acceptance to individuals. The drawbacks are that this is a philosophy that is based on the belief that humans eventually do the best thing to do. Perhaps in the future, such a method would work. Before society can grow up and learn from each other, there is a great deal of potential for harm in this idea. (Lombardo, (2015) <https://visionlaunch.com/cultural-relativism-pros-and-cons/>)

Knowing the advantages or pros and disadvantages or cons of cultural relativism, we are able to balance the cultures of the societies despite the differences. From the very beginning there is already a conflict of cultures in societies because it varies from each other. However from that differences, we can adjust, change our perspectives and learn from the strengths and weaknesses of each culture to improve ourselves. Moreover, to better understand the people as what and who they are, their roots, their moral standards, acceptable and unacceptable or permissible or prohibited in their societies then we need to embrace their cultures to determine the trends or situations to develop. To that end, these make the relationships of the people of the societies strong and unified, do the actions that will not be offended to them, respect and acknowledge every society's beliefs, traditions, and customs to live peacefully and happily.